

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
KATHERINE FERNANDEZ,

Plaintiff,

-against-

CITY OF NEW YORK, JOSEPH FERNANDEZ and
JOHN or JANE DOE 1-10,

Defendants.
-----X

SUMMONS

Index No.

Plaintiff Designates Kings County as
the Proper Venue for Trial

Venue Is Based Upon Locus of Injury

TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorneys within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
January 22, 2024

SIM & DEPAOLA, LLP

Samuel C. DePaola, Esq.

Attorneys for Plaintiff

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Bayside, New York 11361

(718) 281-0400

TO: **CITY OF NEW YORK**
Via Corporation Counsel of The City Of New York
100 Church Street
New York, New York 10007

JOSEPH FERNANDEZ, Shield No. 2086
Via NYPD 67th Precinct
2820 Snyder Avenue
Brooklyn, New York 11226

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
KATHERINE FERNANDEZ,

Plaintiff,

VERIFIED COMPLAINT

Index No.

-against-

CITY OF NEW YORK, JOSEPH FERNANDEZ and
JOHN or JANE DOE 1-10,

Defendants.

-----X

Plaintiff, **KATHERINE FERNANDEZ**, individually, by and through the undersigned attorneys, Sim & DePaola, LLP, for their complaint against Defendants, **CITY OF NEW YORK, JOSEPH FERNANDEZ** and **JOHN or JANE DOE 1-10**, alleges and states as follows:

1. This is a civil rights action, in which Plaintiff seeks relief and redress against defendants, vis-à-vis sections 1981, 1983, 1985, 1986 and 1988 of Title 42 to the Code of Laws of the United States, for the violations of his civil rights under the First, Fourth, Fifth, Sixth and Fourteenth Amendments to the Constitution of the United States, the constitution of the State of New York, in addition to the laws of the City and State of New York.
2. The following claims arise from incidents occurring on or around December 22, 2019, through and including January 21, 2021 in the vicinity of the NYPD 75 Pct or 349 Rockaway Parkway, County of Kings, City and State of New York, in which defendants, acting under color of state law, unlawfully stopped, searched and seized, battered and assaulted, detained, arrested and prosecuted Plaintiff without probable cause, reasonable suspicion, valid search or arrest warrant, or any other legal justification whatsoever to do so.
3. At all relevant times, Plaintiff **KATHERINE FERNANDEZ** was subjected to a pattern of stalking, harassment, verbal and mental abuse by Defendant **JOSEPH FERNANDEZ**, who

continues to be employed by the New York City Police Department with either limited or no remedial action taken.

4. At all times here mentioned, defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.

5. Within ninety (90) days of the accrual dates of the state law claims herein, Plaintiff served the New York City Comptroller's Office with written notice of said claims.

6. More than thirty (30) days have elapsed since the service of said notice, and this matter has not been settled or otherwise disposed of.

7. Plaintiff has complied with the municipal Defendant's demand for an oral examination, pursuant to section 50-h of the General Municipal Law or no such demand has been noticed within the time permitted by law.

8. The claims herein have been commenced within three (3) years upon the incident(s) which they are based.

9. The above-referenced acts caused Plaintiff to be deprived of their liberty, their right to be from unreasonable searches and seizures, in addition to their rights to be afforded a Fair Trial, Due Process and the Equal Protection of the Law.

10. Plaintiff seeks monetary damages (compensatory and punitive) against Defendants, an award of costs and attorney's fees, with all interest then accrued, in addition to such other or further relief, as this Court may deem just and proper.

PARTIES

11. Plaintiff, **KATHERINE FERNANDEZ** ("Plaintiff"), is a Hispanic female, who resides in the County of Suffolk, New York.

12. Defendant, CITY OF NEW YORK (“CITY”), is a municipal corporation organized under the laws of the State of New York.

13. At all times relevant hereto, Defendant CITY, acting through the New York City Police Department (“NYPD”), was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel, including police officers, detectives, and supervisory officers, including the individually named Defendants herein.

14. In addition, at all times here relevant, Defendant CITY was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel, including the individually named defendants herein, obey the laws of the United States, as well as the City and State of New York.

15. At all relevant times herein, Defendant, **JOSEPH FERNANDEZ** (“**FERNANDEZ**”), was a police officer, detective, supervisor, policymaker or official employed by the NYPD under Shield No. 2086 and previously under Shield No. 24064. At this time, Plaintiff is not privy to said Defendant’s Tax Id Number as such knowledge is within the exclusive possession of Defendants. Defendant FERNANDEZ is currently assigned to the NYPD Emergency Services Squad No. 6 as a detective specialist. Defendant FERNANDEZ is being sued in their official and individual capacities.

16. At all relevant times herein, Defendants, JOHN or JANE DOE 1-10, were police officers, detectives, supervisors, policymakers or officials employed by the NYPD. At this time, Plaintiff s are not privy to the true identities of Defendants, JOHN or JANE DOE 1-10, as such knowledge is within the exclusive possession of defendants.

17. At all relevant times herein, Defendants, including FERNANDEZ and JOHN or JANE DOE 1-10, were acting as agents, servants and employees of the City of New York or the NYPD.

Defendants, including FERNANDEZ and JOHN or JANE DOE 1-10, are being sued in their individual and official capacities.

18. At all relevant times herein, Defendants, including FERNANDEZ and JOHN or JANE DOE 1-10, were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.

FACTUAL CHARGES

19. On January 21, 2021 at approximately 7:45 a.m., Plaintiff was illegally stopped, seized and searched, battered and assaulted, detained, and arrested by or at the direction of Defendants, including FERNANDEZ and JOHN or JANE DOE 1-10, in the vicinity of 349 Rockaway Parkway, County of Kings, City and State of New York.

20. Before said date and time Plaintiff was assaulted by her neighbor in her residence after her neighbor criminally trespassed into Plaintiff's residence. Afterwards, upon information and belief, police officers arrived and reviewed abject exculpatory video evidence from Plaintiff's home camera that indicated Plaintiff was the victim of a criminal offense and that her neighbor had followed her to her home and entered thereat without permission.

21. However, said police officers determined there was no probable cause to arrest either party and left Plaintiff's residence.

22. On said date and time, Plaintiff was lawfully present with her daughter and walking towards her daughter's school in the vicinity of this complained-of-incident.

23. Plaintiff asserts that the defendants, including FERNANDEZ and JOHN or JANE DOE 1-10, who violated his civil rights, are part of a larger pattern and practice of similar misconduct, which is so widespread, pervasive and consistent throughout the NYPD and the City of New York that the commission of such constitutionally violative behavior has become tantamount to an

official policy or custom within the NYPD and City of New York or, at the very least, conclusive evidence that the City and the NYPD have either tacitly approved of such egregious wrongdoings or that they have become deliberately indifferent to the civil rights of those who may come into contact with their police officers, including the individually named defendants herein.

24. The individually named defendants herein, as well as other officers serving in the employ of the NYPD and City of New York, have blatantly, shamelessly, consistently and repeatedly engaged in conduct violative of the civil rights guaranteed and protected by Constitution of the United States, in addition to the laws and constitution of the State of New York, all without incurring any ramifications for such misconduct and, ostensibly, with the full and complete blessing of the NYPD, the City of New York and their respective policymakers and supervisors.

25. *The New York Times*, as well as numerous other reputable journalistic enterprises, have reported on the widespread corruption within the NYPD and City of New York, particularly the incredibly disconcerting proclivity of many NYPD officers to lie about subject matters that are materially relevant to criminal prosecutions, including the complete fabrication of arrest evidence and witnesses. Also detailed, is the NYPD's obstinate refusal to effectuate corrective or preventive measures to combat the inevitable recurrence of such misdeeds, and perhaps most troubling, the NYPD's alarming tendency to, instead, reward and promote these officers, including those who were inculpated via incontrovertible evidence, such as video evidence.

26. The constitutionally repugnant behavior that persists within the ranks of the NYPD results from the NYPD's own policies, rules and procedures, namely the NYPD's incredibly flawed and illegal use of arrest quotas. Despite its illegality, such policies remain systemic throughout the NYPD and its individual commands. The NYPD, however, was not content in compelling its officers to effect as many arrests as possible, regardless of the presence of any legal right to do, it

promulgated various subsets of quotas, which are predicated on race, color or ethnicity. Additionally, the NYPD, its supervisors or policymakers would assign varying point values to arrests, which were, again, impermissibly based upon the arrestee's race, color or ethnicity. Unsurprisingly, officers would be better rewarded for minority arrests or summonses. This egregious conduct has reported by numerous respected media outlets and publications and has even formed the basis for federal lawsuits against the City and the NYPD, which were commenced by its own employee officers.

27. On June 17, 2020, the *New York Daily News* published an article, by Graham Rayman, entitled "Brooklyn Cop Claims he was Punished for not Meeting Arrest Quotas, Refusing to Take Responsibility for Controversial Arrest in which he Wasn't Involved," describing allegations from an NYPD Police Officer, Terrence Dickerson, that he was retaliated against by the NYPD for refusing to adhere to mandatory racially based arrest quotas and for his refusal to accept responsibility for a controversial and publicized arrest via the excessive force, despite the fact that he was not even at the scene.

28. On March 18, 2018, *The New York Times* published an explosive article, entitled "Promotions, Not Punishments for Officers Accused of Lying," written by Joseph Goldstein. Mr. Goldstein shines a light on the multitude of flaws within the CCRB and the NYPD, highlighting the fact that the substantiation of a claim against an officer will invariably rely on the presence of incontrovertible proof against the officer. Due to the rarity availability of this type of evidence, an alarmingly small percentage of officer misconduct claims are substantiated. The CCRB is further handicapped by a terribly designed system that requires evidence of a virtually indisputable nature to substantiate any claim against an officer. The article also details the NYPD's persistent reluctance to investigate or discipline officers who lie and even posits that this reluctance is a

significant cause of the lying pandemic within the NYPD. The article references various officers and detectives who were the subject of credible accusations relating to the officers' intentionally false statements, with some allegations coming from federal and state judges.

29. On September 12, 2019, *The New York Times* published another article by Joseph Goldstein, entitled "Officers Said They Smelled Pot. The Judge Called Them Liars." Unsurprisingly, this article dealt with the unusually high frequency of officers using the odor of marijuana to excuse a search that conspicuously does not result in the recovery of any marijuana. It should not require an article in *The New York Times* to call attention to such patently disingenuous tactics, but has become necessary for a variety of reasons, including the NYPD's failure to correct such behavior, the willingness of prosecutors and judges to credit the lying officers and the increasing rate of occurrence.

30. On April 24, 2019, *The New York Times* published an article, entitled "Detective's Lies Sent Three People to Prison, Prosecutors Charge," by Sean Piccolo, detailing the lies of NYPD Second Grade Detective Joseph Franco and how those lies resulted in the imprisonment of at least three innocent people. The article described how Det. Franco lied about observing drug transactions on at least three separate occasions, lies that were only uncovered through contradictory video evidence. Det. Franco's lies resulted in the innocent individuals each being sentenced to prison terms in excess of one-year.

31. Other articles include: (i) "Testilying' by Police: A Stubborn Problem.," by Joseph Goldstein, *The New York Times*, March 18, 2018; (ii) "New York Detective Charged with Faking Lineup Results," by Joseph Goldstein, *The New York Times*, February 17, 2018; (iii) "He Excelled as a Detective, Until Prosecutors Stopped Believing Him," by Joseph Goldstein, *The New York Times*, October 17, 2017; (iv) "Review Board Notes Rise in New York Police Officers' False

Statement,” by J. David Goodman, *The New York Times*, May 14, 2015; (v) “In Brooklyn Gun Cases, Suspicion Turns to the Police,” by Stephanie Clifford, *The New York Times*, December 11, 2014; (vi) “Detective is Found Guilty of Planting Drugs,” by Tim Stelloh, *The New York Times*, November 1, 2011; and (vii) “The Drugs? They Came from the Police,” by Jim Dwyer, *The New York Times*, October 13, 2011.

32. The NYPD has a longstanding and ignominious record of failing to discipline its officers, or even entertaining allegations of wrongdoing against them. On June 26, 2019, *The New York Times* published an article, entitled “2,495 Reports of Police Bias. Not One Was Deemed Valid by the N.Y.P.D.” This article reported that within the last five (5) years, almost 2,500 separate individuals have filed formal complaints with the NYPD alleging that an officer acted with bias toward them, with not a single one being substantiated by the NYPD. Such a finding is plainly incredible and obviously the result of deliberately poor or nonexistent investigatory protocols. The report further impugned the NYPD’s commitment to combat the prejudices and the biases exhibited by many of its officers.

33. Upon information and belief, the NYPD, the City of New York, and their respective policymakers, officials or supervisors have imposed, tacitly approved or acquiesced to policies, customs, or patterns and practices within the NYPD that resulted in the arrest and criminal prosecution of Plaintiff without probable cause.

34. Upon information and belief, the NYPD, the City of New York, and their respective policymakers or supervisors have failed to provide adequate training regarding the identification of probable cause, reasonable suspicion or the appropriate amount of force to be used.

35. Defendants’ actions with respect to the underlying arrest of Plaintiff, which occurred without even the semblance of probable cause, were so blatantly violative of Plaintiff’s civil rights

that the tacit approval of identical or similar acts by the policymakers or supervisors of the NYPD and the City of New York, as well as their deliberate indifference towards the rights of any individuals who may come into contact with Defendants, should be inferred, because such flagrant deprivations of constitutionally protected rights could not and would not occur without the tacit approval or deliberate indifference regarding the commission of such violations by the policymakers or supervisors of the NYPD and City of New York.

36. Upon information and belief, further details and facts, relating to the unlawful policies, customs or patterns and practices of the NYPD, City of New York and their respective policymakers, supervisors, police officers or employees, will become known after the completion of discovery, as such information is presently within the exclusive possession of Defendants, the NYPD and City of New York.

37. Upon information and belief, the personnel files, records and disciplinary histories of the officer Defendants will reveal a history of Constitutional violations indicative of defendant City's knowledge that the individual officer Defendants were unfit for employment as NYPD officers, or for employment in general, and that the probability of the individually named Defendants committing similar violations in the future was extremely high.

38. Upon information and belief, said personnel files, records and disciplinary histories will conclusively show that the City and the NYPD were fully aware of Defendants' past constitutional violations, the unacceptably high probability for the recurrence of similar transgressions, the unreasonably dangerous situations that were likely to result from their hiring or retention, as well as their unsuitability for employment as law enforcement officers, or for employment in general, and that the NYPD and City of New York failed to engage in any preventive or corrective action intended to diminish the likelihood of recurrence for such violations, which is tantamount to the

City's tacit approval of such misconduct or the City's deliberate indifference towards the civil rights of those who may interact with its employees, including FERNANDEZ and JOHN or JANE DOE 1-10.

39. Upon information and belief, the NYPD and City of New York and have failed, or outright refused, to correct the individually named Defendants' predilections to engage in unconstitutional behavior or attempt to prevent the recurrence of such misconduct.

40. The aforementioned acts of defendants, including FERNANDEZ and OHN or JANE DOE 1-10, directly or proximately resulted in the deprivation or violation of Plaintiff's civil rights, as enumerated and set forth by the First, Fourth, Fifth, Sixth and Fourteenth Amendments to the Constitution of the United States, the constitution of the State of New York and the laws of the City and State of New York.

41. As direct or proximate results of said acts, Plaintiff was caused to suffer the loss of his liberty, irreparable reputational harm, the loss of earnings and potential earnings, substantial and permanent physical and psychological injuries, as well as severe and permanent emotional distress, including fear, embarrassment, humiliation, traumatization, frustration, extreme inconvenience and anxiety.

FIRST CAUSE OF ACTION

Protected Speech or Activity Retaliation Claim Under New York State Law

42. The above paragraphs are hereby incorporated by reference as though fully set forth.

43. Plaintiff engaged in speech and activities that were protected by § 8, Article I, of the constitution of the State of New York.

44. Defendants committed impermissible or unlawful actions against Plaintiff that were motivated or substantially caused by Plaintiff's constitutionally protected speech or activities.

45. Defendants' retaliatory actions against Plaintiff resulted in deprivations to his liberty and the initiation of criminal charges against him in the absence of probable cause.

46. Defendants' retaliatory actions adversely affected Plaintiff's protected speech or activities by physically or procedurally preventing him from further pursuing said protected speech or activities or by chilling his desire to further participate or engage in such protected speech or activities.

47. Accordingly, Plaintiff's rights to engage in protected speech and activities, guaranteed and protected by § 8, Article I, of the constitution of the State of New York, were violated by defendants.

48. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoings, under the doctrine of *respondeat superior*.

49. As a direct and proximate result of this unlawful conduct, Plaintiff sustained damages.

SECOND CAUSE OF ACTION

First Amendment Retaliation Claim Under
42 U.S.C. § 1983 *Against* Individual Defendants

50. The above paragraphs are hereby incorporated by reference as though fully set forth.

51. Plaintiff engaged in speech and activities that were protected by the First Amendment to the Constitution of the United States.

52. Defendants committed impermissible or unlawful actions against Plaintiff that were motivated or substantially caused by Plaintiff's Constitutionally protected speech or activities, under the First Amendment.

53. Defendants' retaliatory actions against Plaintiff resulted in deprivations to his liberty and the initiation of criminal charges against him in the absence of probable cause.

54. Defendants' retaliatory actions adversely affected Plaintiff's protected speech or activities by physically or procedurally preventing him from further pursuing said protected speech or activities, or by chilling his desires to further participate or engage in such protected speech or activities.

55. Accordingly, Plaintiff's right to engage in protected speech and activities, as guaranteed and protected by the First Amendment to the Constitution of the United States, was violated by defendants.

56. As a direct and proximate result of this unlawful conduct, Plaintiff sustained damages.

THIRD CAUSE OF ACTION
Unlawful Search & Seizure Under
New York State Law

57. The above paragraphs are hereby incorporated by reference as though fully set forth.

58. Defendants subjected Plaintiff's person and their property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

59. Plaintiff was conscious and fully aware of the unreasonable searches and seizures to his persons and property.

60. Plaintiff did not consent to the unreasonable searches and seizures to his person or property.

61. The unreasonable searches and seizures to Plaintiff's person and property were not otherwise privileged.

62. Accordingly, defendants violated Plaintiff's right to be free from unreasonable searches and seizures, pursuant to § 12, Article I, of the constitution of the State of New York and § 8, Article II, of the New York Civil Rights Law.

63. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

64. As a direct and proximate result of this unlawful conduct, Plaintiff sustained damages.

FOURTH CAUSE OF ACTION

Unlawful Search & Seizure Under
42 U.S.C. § 1983 *Against* Individual Defendants

65. The above paragraphs are hereby incorporated by reference as though fully set forth.

66. Defendants subjected Plaintiff's person and his property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

67. Plaintiff were conscious and fully aware of the unreasonable searches and seizures to his person and property.

68. Plaintiff did not consent to the unreasonable searches and seizures to his person or property.

69. The unreasonable searches and seizures to Plaintiff's person and property were not otherwise privileged.

70. Accordingly, defendants violated Plaintiff's rights to be free from unreasonable searches and seizures, pursuant to the Fourth Amendment to the Constitution of the United States.

71. As a direct and proximate result of this unlawful conduct, Plaintiff sustained damages.

FIFTH CAUSE OF ACTION

False Arrest & False Imprisonment Under
New York State Law

72. The above paragraphs are hereby incorporated by reference as though fully set forth.

73. Defendants subjected Plaintiff to false arrest, false imprisonment, and the deprivation of liberty without probable cause.

74. Plaintiff was conscious of his confinement.

75. Plaintiff did not consent to his confinement.

76. The arrest and imprisonment of Plaintiff were not otherwise privileged.

77. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

78. As a direct and proximate result of this unlawful conduct, Plaintiff sustained damages.

SIXTH CAUSE OF ACTION

False Arrest & False Imprisonment Under
42 U.S.C. § 1983 *Against* Individual Defendants

79. The above paragraphs are hereby incorporated by reference as though fully set forth.

80. The Defendants violated the Fourth and Fourteenth Amendments to the Constitution of the United States by wrongfully and illegally arresting, detaining and imprisoning Plaintiff.

81. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiff were carried out without a valid warrant, without Plaintiff's consent, and without probable cause or reasonable suspicion.

82. At all relevant times, Defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiff.

83. As a direct and proximate result of this unlawful conduct, Plaintiff sustained damages.

SEVENTH CAUSE OF ACTION

Assault & Battery Under
New York State Law

84. The above paragraphs are hereby incorporated by reference as though fully set forth.

85. Defendants caused Plaintiff fear for their physical well-being and safety and placed him in apprehension of immediate harmful or offensive touching.

86. Defendants engaged in and subjected Plaintiff to immediate harmful or offensive touching and battered him without his consent or other legal justification therefor.

87. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

88. As a direct and proximate result of this breach, Plaintiff sustained the damages alleged herein.

EIGHTH CAUSE OF ACTION

Excessive Force Under
42 U.S.C. § 1983 *Against* Individual Defendants

89. The above paragraphs are hereby incorporated by reference as though fully set forth.

90. The Defendants violated Plaintiff's rights, under the Fourth and Fourteenth Amendments to the Constitution of the United States, because they used unreasonable force without the consent of Plaintiff.

91. Defendants engaged in and subjected Plaintiff to immediate harmful or offensive touching and battered him without consent.

92. As a direct and proximate result of this breach, Plaintiff sustained the damages alleged herein.

NINTH CAUSE OF ACTION

Malicious Prosecution Under
New York State Law

93. The above paragraphs are hereby incorporated by reference as though fully set forth.

94. Defendants initiated the criminal prosecution against Plaintiff.

95. Defendants lacked probable cause to believe Plaintiff was guilty or that the criminal prosecution would succeed.

96. Defendants acted with malice, which may be inferred in the absence of probable cause.

97. The prosecution was terminated in favor of Plaintiff, when all adverse charges were unconditionally and outright dismissed on the merits, due to the lack of probable cause to believe that Plaintiff had committed a crime or that the prosecution would succeed.

98. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

99. As a direct and proximate result of this breach, Plaintiff sustained the damages alleged herein.

TENTH CAUSE OF ACTION

Malicious Prosecution Under
42 U.S.C. § 1983 *Against* Individual Defendants

100. The above paragraphs are hereby incorporated by reference as though fully set forth.

101. Defendants initiated the criminal prosecution against Plaintiff.

102. Defendants lacked probable cause to believe Plaintiff was guilty or that the criminal prosecution would succeed.

103. Defendants acted with malice, which may be inferred in the absence of probable cause.

104. The prosecution was terminated in favor of Plaintiff, when all adverse charges were unconditionally dismissed on the merits, due to the lack of probable cause to believe that Plaintiff had committed any crime or that the prosecution would succeed.

105. Accordingly, Defendants violated Plaintiff's rights under the Fourth and Fourteenth Amendments to the Constitution of the United States.

106. As a direct and proximate result of this unlawful conduct, Plaintiff sustained damages.

ELEVENTH CAUSE OF ACTION

Malicious Abuse of Process Under
New York State Law

107. The above paragraphs are hereby incorporated by reference as though fully set forth.

108. Defendants arrested, detained and caused a criminal prosecution to be initiated against Plaintiff to compel the compliance or forbearance of some act.

109. Defendants had no excuse or justification to forcibly detain or initiate a criminal prosecution against Plaintiff, especially in the absence of any cognizable probable cause.

110. Defendants intended to inflict substantial harm upon Plaintiff.

111. Defendants acted to achieve a collateral purpose, beyond or in addition to the criminal prosecution initiated and thereafter maintained against Plaintiff.

112. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

113. As a direct and proximate result of this unlawful conduct, Plaintiff sustained damages.

TWELFTH CAUSE OF ACTION

Malicious Abuse of Process Under
42 U.S.C. § 1983 *Against* Individual Defendants

114. The above paragraphs are hereby incorporated by reference as though fully set forth.

115. Defendants arrested, detained and a caused criminal prosecution to be initiated against Plaintiff to compel the compliance or forbearance of some act.

116. Defendants had no excuse or justification to forcibly detain or initiate criminal prosecution against Plaintiff, especially in the absence of any cognizable probable cause.

117. Defendants intended to inflict substantial harm upon Plaintiff.

118. Defendants acted to achieve a collateral purpose, beyond or in addition to the criminal prosecution initiated and thereafter maintained against Plaintiff.

119. Defendants' actions therefore resulted in deprivations to Plaintiff's rights, pursuant to the Fourth and Fourteenth Amendments to the Constitution of the United States.

120. As a direct and proximate result of this unlawful conduct, Plaintiff sustained damages.

THIRTEENTH CAUSE OF ACTION

Denial of Right to Due Process Under
New York State Law

121. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

122. Defendants fabricated false evidence to be used against Plaintiff that was likely to influence a jury's decision.

123. Defendants forwarded said fabrications and false information to prosecutors.

124. Defendants' actions resulted in deprivations to the liberty and freedom of movement of Plaintiff after legal process had attached following his arraignment in criminal court.

125. Accordingly, defendants violated Plaintiff's right to Due Process, pursuant to §§ 1, 2, and 6, of Article I, of the constitution of the State of New York, and § 12, Article II, of the New York Civil Rights Law.

126. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

127. As a direct and proximate result of this unlawful conduct, Plaintiff sustained damages.

FOURTEENTH CAUSE OF ACTION

Denial of Rights to Fair Trial & Due Process Under
42 U.S.C. § 1983 *Against* Individual Defendants

128. The above paragraphs are hereby incorporated by reference as though fully set forth.

129. Defendants engaged in the fabrication of evidence likely to influence a jury's decision.

130. Defendants forwarded said fabrications and false information to prosecutors.

131. Defendants' actions resulted in deprivations to the liberty and freedom of movement of Plaintiff after legal process had attached following his arraignment in criminal court.

132. Accordingly, defendants violated Plaintiff's rights, pursuant to the Fourth, Fifth, Sixth and Fourteenth Amendments to Constitution of the United States.

133. As a direct and proximate result of this unlawful conduct, Plaintiff sustained damages.

FIFTEENTH CAUSE OF ACTIONViolation of Victims of Violent Crime Protection Act Under
New York City Law

134. The above paragraphs are here incorporated by reference as though fully set forth herein.

135. Defendants' acts or series of acts constituted the commission of a misdemeanor or felony against Plaintiff, as defined in state or federal law, which presented a serious risk of physical injury to Plaintiff, regardless of whether said acts actually resulted in criminal charges, prosecutions or convictions.

136. Accordingly, defendants committed crimes of violence against Plaintiff and violated Plaintiff's rights, pursuant to § 10-403 of the Administrative Code of the City of New York.

137. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

138. As a direct and proximate result of this unlawful conduct, Plaintiff sustained damages.

SIXTEENTH CAUSE OF ACTIONBiased Based Profiling Under
New York City Law

139. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

140. Defendants impermissibly relied upon the actual or perceived race, color, national origin, ancestry, citizenship status, gender, religion, religious practice, age, disability or sexual orientation of Plaintiff as the determinative factor in initiating law enforcement actions against Plaintiff, rather than Plaintiff's behavior or other information or circumstances that would link Plaintiff to suspected unlawful activity.

141. Accordingly, defendants violated Plaintiff's rights, pursuant to § 14-151 of the Administrative Code of the City of New York.

142. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

143. As a direct and proximate result of this unlawful conduct, Plaintiff sustained damages.

SEVENTEENTH CAUSE OF ACTION

Deprivation of Rights & Denial of Equal Protection of the Laws Under
New York State Law

144. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

145. Plaintiff, as a Black or African American male, belongs to a racial minority and a protected class.

146. Defendants discriminated against Plaintiff on the basis of race, color, national origin, ancestry, gender, religion, religious practice, age, disability or sexual orientation.

147. Defendants also engaged in the selective treatment of Plaintiff, in comparison to others similarly situated.

148. Defendants' discriminatory treatment of Plaintiff was based on impermissible considerations, such as race, color, ethnicity, an intent to inhibit or punish Plaintiff for the exertion of their Constitutional rights, or a malicious or bad faith intent to injure Plaintiff.

149. Defendants applied facially neutral laws against Plaintiff in a discriminatory manner.

150. Defendants, motivated by racial animus, applied facially neutral statutes with adverse effects against Plaintiff.

151. Defendants did not possess a rational basis, excuse or justification for applying any laws or statutes against Plaintiff.

152. Accordingly, defendants violated Plaintiff's rights, pursuant to § 11, Article I, of the constitution of the State of New York, § 79-N, Article VII, of the New York Civil Rights Law and § 296, ¶ 13, of the New York Executive Law.

153. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

154. As a direct and proximate result of this unlawful conduct, Plaintiff sustained damages.

EIGHTEENTH CAUSE OF ACTION

Deprivation of Rights & Denial of Equal Protection of the Laws Under
42 U.S.C. §§ 1981 & 1983 *Against* Individual Defendants

155. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

156. Plaintiff, as a Black or African American male, belongs to a racial minority and a protected class.

157. Defendants discriminated against Plaintiff on the basis of race, color, ethnicity or national origin.

158. Defendants engaged in the selective treatment of Plaintiff in comparison to others similarly situated.

159. Defendants' selective treatment of Plaintiff was based on impermissible considerations, such as race, color, ethnicity, an intent to inhibit or punish Plaintiff for the exertion of their Constitutional rights, or malicious or bad faith intent to injure Plaintiff.

160. Defendants applied facially neutral laws against Plaintiff in a discriminatory manner.

161. Defendants, motivated by racial animus, applied facially neutral penal statutes with adverse effects against Plaintiff.

162. Defendants did not possess a rational basis, excuse or justification for applying any laws or statutes against Plaintiff.

163. Accordingly, defendants violated Plaintiff's rights, under the Equal Protection Clause of the Fourteenth Amendment to the Constitution of the United States.

164. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

165. As a direct and proximate result of this unlawful conduct, Plaintiff sustained damages.

NINETEENTH CAUSE OF ACTION

Conspiracy to Interfere with Civil Rights & Failure to Prevent the Conspiracy Under
42 U.S.C. §§ 1983, 1985 & 1986 *Against* Individual Defendants

166. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

167. Defendants engaged in a conspiracy against Plaintiff to deprive him of his rights to engage in protected speech or activities, to be free from unreasonable searches and seizures, to be afforded a fair trial, and to not be deprived of their liberty or property without Due Process of Law, in addition to Plaintiff's Constitutionally guaranteed privileges and immunities under the Fifth and Fourteenth Amendments to the Constitution of the United States.

168. Defendants committed overt acts in furtherance of their conspiracy against Plaintiff.

169. As a result, Plaintiff sustained injuries to his person, was deprived of his liberty, rights or privileges as a citizen of the United States.

170. Defendants' conspiracy was motivated by a desire to deprive Plaintiff of his civil rights or because of some racial or otherwise class-based, invidious or discriminatory animus.

171. The Defendants that did not engage or participate in the conspiracy to interfere with Plaintiff's civil rights, had knowledge that acts in furtherance of the conspiracy were about to be committed or in the process of being committed, possessed the power to prevent or aid in the prevention of the conspiratorial objective, and neglected to do so.

172. Accordingly, defendants violated Plaintiff's rights, pursuant to the First, Fourth, Fifth, Sixth and Fourteenth Amendments to the Constitution of the United States.

173. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

174. As a direct and proximate result of this unlawful conduct, Plaintiff sustained damages.

TWENTIETH CAUSE OF ACTION

Failure to Intervene Under
New York State Law

175. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

176. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.

177. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

178. As a direct and proximate result of this unlawful conduct, Plaintiff sustained damages.

TWENTY-FIRST CAUSE OF ACTION

Failure to Intervene Under
42 U.S.C. § 1983 *Against* Individual Defendants

179. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

180. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.

181. Accordingly, the Defendants who failed to intervene violated the First, Fourth, Fifth, Sixth and Fourteenth Amendments to the Constitution of the United States.

182. As a direct and proximate result of this unlawful conduct, Plaintiff sustained damages.

TWENTY-SECOND CAUSE OF ACTION**Negligent Hiring, Training, Retention & Supervision Under
New York State Law**

183. The above paragraphs are hereby incorporated by reference as though fully set forth.

184. Defendant City owed a duty of care to Plaintiff to adequately hire, train, retain and supervise its employee defendants.

185. Defendant City breached those duties of care.

186. Defendant City placed the individually named defendants herein in a position where they could inflict foreseeable harm.

187. Defendant City knew or should have known of the individual named defendants' propensities for violating the individual civil rights of those they interacted with prior to the injuries incurred by Plaintiff.

188. Defendant City failed to take reasonable measures in hiring, training, retaining or supervising the individually named defendants, which would have prevented or mitigated the aforesaid injuries suffered by Plaintiff.

189. As a direct and proximate result of this unlawful conduct, Plaintiff sustained damages.

TWENTY-THIRD CAUSE OF ACTION**Municipal "*Monell*" Liability Under
42 U.S.C. § 1983 *Against* Defendant City**

190. The above paragraphs are hereby incorporated by reference as though fully set forth.

191. Defendant City maintained a policy or custom that caused Plaintiff to be deprived of their civil rights, tacitly approved of such violative conduct or was deliberately indifferent toward the potential exposure of those who may interact with the individually named defendants to such Constitutionally repugnant behavior, such as Plaintiff.

192. Defendant City's employee police officers have engaged in an illegal pattern and practice of misconduct, so consistent and widespread that it constitutes a custom or usage, of which a supervisor or policymaker must have been aware of.

193. Defendant City and its policymakers failed to provide adequate training or supervision to their subordinates to such an extent that is tantamount to their deliberate indifference toward the rights of those who may come into contact with the defendant City's employee police officers, including the individually named police officers herein.

194. Defendant City's employee police officers engaged in such egregious and flagrant violations of Plaintiff's Constitutional rights that the need for enhanced training or supervision is obvious and equates to the exhibition of deliberate indifference by defendant City and its officials, policymakers or supervisors toward the rights of individuals, who may come into contact with defendant City's employee police officers, including the individually named defendants herein.

195. Defendant City's repeated willful refusals or unexcused failures to install or apply corrective or preventive measures constitutes its tacit approval or deliberate indifference with respect to violations of the civil or Constitutional rights of those who may come into contact with NYPD officers, including the individually named defendants herein.

196. Defendant City's conduct resulted in violations of Plaintiff's civil rights, under the First, Fourth, Fifth, Sixth and Fourteenth Amendments to the Constitution of the United States.

197. As a direct and proximate result of this unlawful conduct, Plaintiff sustained damages.

WHEREFORE, Plaintiffs respectfully request judgment against Defendants, jointly and severally, as follows:

- a) On the First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- b) On the Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- c) On the Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- d) On the Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- e) On the Fifth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- f) On the Sixth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- g) On the Seventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- h) On the Eighth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- i) On the Ninth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- j) On the Tenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- k) On the Eleventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- l) On the Twelfth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- m) On the Thirteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- n) On the Fourteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- o) On the Fifteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- p) On the Sixteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- q) On the Seventeenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- r) On the Eighteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- s) On the Nineteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- t) On the Twentieth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- u) On the Twenty-First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- v) On the Twenty-Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- w) On the Twenty-Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- x) Awarding Plaintiffs compensatory and punitive damages in an amount to be determined by a jury on all causes of action set forth herein;
- y) Awarding Plaintiffs reasonable attorney's fees and costs, pursuant to 42 U.S.C. § 1988, the New York Civil Rights and Executive Laws, and all applicable sections of the Administrative Code of the City of New York;
- z) Together with the costs and disbursements of this action with all interest then accrued.

JURY DEMAND

Plaintiff hereby demands a trial by jury.

Dated: Bayside, New York
January 22, 2024

SIM & DEPAOLA, LLP

By: /Samuel C. DePaola
By: Samuel C. DePaola, Esq.
Attorneys for Plaintiff
42-40 Bell Boulevard – Suite 405
Bayside, New York 11361
(718) 281-0400

ATTORNEY VERIFICATION

I, Smauel C. DePaola, an attorney admitted to practice in the courts of New York State, state that I am an associate with the firm of SIM & DEPAOLA, LLP, the attorneys of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief and, as to those matters, I believe it to be true. This verification is made by me and not by Plaintiff, because Plaintiff resides outside the county where deponent maintains his office. I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
March 22, 2023

SAMUEL C. DEPAOLA, ESQ.